

---

in possession of sufficient means to defray the necessary expenses.

- (c) If the deceased left no spouse or kindred possessed of sufficient means to defray the necessary expenses, as provided in the two foregoing subsections, the duty of burial shall devolve upon the municipal authorities.

Any person upon whom the duty of burying a dead body is imposed by law shall perform such duty within forty-eight hours after death, having ability to do so.

[1458-31, 32.]

SECTION 919. *Right of Custody to Body.* — Any person charged by law with the duty of burying the body of a deceased person is entitled to the custody of such body for the purpose of burying it, except when an inquest is required by law for the purpose of determining the cause of death; and, in case of death due to or accompanied by a dangerous communicable disease, such body shall until buried remain in the custody of the local board of health or local health officer, or if there be no such, then in the custody of the municipal council.

[1458-33.]

SECTION 920. *Restriction as to Funeral Ceremonies in Certain Cases.* — In case of death due to dangerous communicable disease or due to any epidemic recognized by the Director of Health, the body of the deceased shall not be taken to any place of public assembly, nor shall any person be permitted to attend the funeral of such deceased person, except the adult members of the immediate family of the deceased, his nearest friends, not exceeding four, and other persons whose attendance is absolutely necessary. After the deceased shall have been buried for a period of one hour a public funeral may be held at the grave or in a place of public assembly or elsewhere.

In case of death due to other causes the right to hold public funerals in an orderly manner and to take the remains of the deceased into churches or other places for this purpose shall not be interfered with.

[1458-34.]

SECTION 921. *United States Burial Corps Not Restricted by Provisions of this Chapter.* — The provisions of this chapter shall not be construed to obstruct the United States burial corps when acting under the authority of the laws and military regulations of the United States, in so far as such provisions pertain to the